

Case Summary Report

CASE SUMMARY REPORT:

User Problem: The user reports that their brother has expelled them from their home and taken possession of the property. This incident occurred two weeks ago, and the user states that the house was inherited from their parents, with a registry showing equal division of ownership between the user and their brother.

Case Category: Property Dispute - high confidence.

Rights Summary:

- Right to peaceful possession of property.
- Right to legal share in inherited property.
- Right to protection against illegal eviction.

Readiness Score: 30%

Breakdown:

- Initial information gathered: 30%
- Legal documents provided: 0% (Registry and Fard mentioned but not provided)
- Legal consultation: 0%

Missing Documents with Costs:

- Certified copy of the property registry (cost varies by district registrar).
- Certified copy of Fard (cost varies by district revenue office).

Key Risks Highlighted:

- Low Fraud Risk Level: No immediate misguide attempt or fraud pattern detected.

Retrieved Statutory Laws and Court Procedures:

1. The Specific Relief Act, 1877:

- Section 8: states that a person entitled to the possession of specific immovable property may recover it in the manner prescribed by the Code of Civil Procedure.
- Section 9: provides that if any person is dispossessed without his consent of immovable property otherwise than in due course of law, he may recover possession thereof, notwithstanding any other title that may be set up in such suit. This section allows for a summary suit for possession where a person is dispossessed without due process.

2. The Civil Procedure Code, 1908 (CPC):

- Order XXI, Rule 35: provides for the delivery of immovable property in execution of a decree.
- Section 100: outlines the right to appeal to the High Court in certain cases.

3. The Pakistan Penal Code, 1860 (PPC):

- Section 441: Defines criminal trespass as entering into or upon property in the possession of another with intent to commit an offense or to intimidate, insult, or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with such intent.

- Section 447: Prescribes punishment for criminal trespass.
- Section 403: Defines dishonest misappropriation of property.
- Section 406: Prescribes punishment for criminal breach of trust.

4. The Qanun-e-Shahadat Order, 1984:

- Article 17: Deals with the competence of witnesses.
- Article 78-83: Pertain to documentary evidence, including public and private documents and their proof.

5. Land Revenue Act, 1967:

- Sections related to mutation of property (transfer of ownership) and record of rights, which would be relevant for verifying the registry and fard.

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